

for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact to the plaintiff; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would not have acted as he or she did if he or she had known of the concealed or suppressed fact; and (5) plaintiff sustained damage as a result of the concealment or suppression of the fact. [Citation.]” *Hambrick v. Healthcare Partners Med. Grp., Inc.* (2015) 238 Cal. App. 4th 124, 162.

Defendant’s moving papers argue that the fraud claim is not pled with sufficient particularity, but the sufficiency of the pleadings is not at issue on a Motion for Summary Judgment. Instead, Defendant must show that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Defendant argues that Plaintiffs have alleged a duty to disclose based on Defendant’s exclusive knowledge of the infotainment system defects. Defendant then argues that “Plaintiffs’ references to complaints that were publicly available wholly contradicts Plaintiffs’ conclusory allegations that AHM had exclusive knowledge of them.” (MSA p.6 ln. 6-7.) There is no citation to evidence regarding “Plaintiffs’ references,” and the Court cannot determine what Defendant is referring to.

Defendant’s separate statement and supporting evidence sets forth only four undisputed material facts with respect to the fifth cause of action. In relevant part, they provide that Plaintiffs’ fifth cause of action is for fraudulent inducement-concealment in regards to alleged defects with the “infotainment” system in 2020 Honda Pilot vehicles. (UMF 3.) Plaintiffs’ Complaint does not allege any specific “infotainment” system defect as to Plaintiff’s vehicle. (UMF 4.) These facts only address the sufficiency of pleading the fraud claim, they do not negate any element of the cause of action. As noted above, there is some argument regarding the elements of concealment, duty, and damages in the moving papers, but these elements are not addressed in the separate statement. The Court cannot make assumptions or conjectures regarding what evidence Defendant is setting forth in support of these arguments. *See* CRC Rule 3.1350(d); CCP § 437c(b)(1). Additionally, the Court notes that the First Amended Complaint’s Fifth Cause of Action does allege the Subject Vehicle contained a defective “infotainment system” that cause systems including navigation, audio, and backup camera to malfunction. This causes the system to freeze or crash, which poses a safety risk by distracting the driver and/or causing safety-related systems including the backup camera to fail. (FAC ¶ 45.) Defendant has failed to carry its burden to establish no triable issue of fact remains with respect to the fifth cause of action. Summary adjudication is **DENIED**.

Sixth Cause of Action: The Court notes that Plaintiff raised arguments regarding the Sixth Cause of Action in its Opposition, despite Defendant not seeking summary adjudication of this cause of action in its Motion. Defendants address Plaintiff’s opposition arguments in their Reply brief. The Court declines to rule on the merits of this cause of action, as the Motion for Summary Adjudication did not seek a ruling on it, and the Separate Statement does not include this cause of action or cite supporting evidence.

Defendant’s Motion for Summary Adjudication is **DENIED**. Defendant’s proposed order will be modified to reflect the denial.

IN RE: HANSEN

Case Number: 25CV-0207879

Tentative Ruling on Petition for Change of Name: Petitioner Van Tran Hansen seeks to change the name of her minor daughter. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. No proof of publication has been provided. Additionally, when a petition to change the name of a minor is brought by one parent only, the nonconsenting parent must be personally served with the notice of hearing or order to show cause at least 30 days before the hearing date. See CCP § 1277(a)(4). In the alternative to personal service, the Court may order notice be given in another manner the Court determines is reasonably calculated to give actual notice to the non-consenting parent. CCP § 1277(a)(4). The Court notes that the Petition indicates that the father's address is in Vietnam. The Court will permit service by mail. This matter is continued to **Monday, October 20, 2025, at 8:30 a.m. in Department 64** to permit service on the father. Petitioner shall file an Amended Order to Show Cause ("Amended OSC") for the continued hearing date. The Amended OSC and Petition must be mailed to the father at least 50 days before the continued hearing date. (30 days are required for notice, and 20 additional days are required for mailing outside the U.S. per CCP 1005(b).) Proof of service on the father must be filed with the Court. No appearance is necessary on today's calendar.

HEARDEN, ET AL. VS. WINDSOR REDDING CARE CENTER, LLC, ET AL.

Case Number: CVPO21-0198083

Tentative Ruling on Motion to Compel Deposition of Jerry Staffing, LLC's Person Most Qualified: The present motion is unopposed. Plaintiffs move to compel the deposition of Defendant Jerry Staffing, LLC's Person Most Qualified on the topic of Organizational Structure pursuant to CCP § 2025.450. Plaintiffs also request sanctions in the amount of \$2,452.50. Finally, Plaintiffs are seeking issue and evidentiary sanctions.

Merits of Motion. CCP § 2025.450 permits a noticing party to move for an order compelling the deposition if the deponent fails to appear. Plaintiffs have established that they noticed the deposition of PMQ of Jerry Staffing, LLC. Despite multiple continuances the PMQ deponent has never appeared for his/her deposition. Plaintiffs previously moved to compel the deposition, but the motion was denied based on Defendants' representations that the PMQ would be set and occur. Despite these representations, the deposition has not occurred, and the present motion was filed. The Court finds that PMQ deposition shall occur, and an order will issue to compel the deposition.

Sanction. If a motion under CCP § 2025.450 is granted, the imposition of monetary sanctions is mandatory against the deponent or party, unless the court finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of sanctions unjust. CCP § 2025.450(g). Defendants have not filed an opposition to this motion and therefore have provided no justification or other circumstance to make the imposition of sanctions unjust. Monetary sanctions will be awarded as requested in the amount of \$2,452.50.

Plaintiffs have also requested various evidentiary and issue sanctions. CCP § 2023.030(b). The Court finds that the imposition of evidentiary or issue sanctions is unwarranted under the current circumstances. While there have been prior discovery disputes, there was no prior order compelling this deposition to occur.

The motion is **GRANTED**. Monetary sanctions are awarded in the amount of \$2,452.50. A proposed order was lodged with the Court and will be modified to conform to the Court's final ruling.